

The Michigan Right to Farm Act

Farms and farm operations in Michigan are protected from claims of public and private nuisance when engaging in generally accepted agricultural and management practices, as deemed by the Michigan Commission of Agriculture and Rural Development. Additionally, the farm or operation can't be considered a nuisance if it existed before a change in land use or occupancy within one mile of the farm's boundaries. Changes to the farm's ownership, size, type of product produced, etc. don't create a nuisance either. This safeguard for farmers is made possible through **Michigan's Right to Farm Act**. If a homeowner did file suit against a farmer or farm operation and the farm prevailed, the plaintiff would have to pay reasonable expenses and court costs for the farming operation.

According to the act, farm includes land, plans, animals, improvements, machines, equipment, etc. used for the commercial production of farm products. Farm operations include activities related to the operation and management of a farm, such as selling produce roadside, generating noise, dust, or odors, aerial spraying of fields, and other activities.

Disclosure Required

If you have a seller client whose property is in the vicinity of a farming operation, this must be disclosed on the seller's disclosure statement. The act also provides a voluntary statement that a seller within one mile of a farm may make to prospective purchasers:

"This notice is to inform prospective residents that the real property they are about to acquire lies within one mile of the property boundary of a farm or farm operation. Generally accepted agricultural and management practices may be utilized by the farm or farm operation and may generate usual and ordinary noise, dust, odors, and other associated conditions, and these practices are protected by the Michigan Right to Farm Act."